

than this Court; malice was the cause of the complaint, but although malice be the accuser, justice should be the punisher. And by some [of the Court] Sir John Stafford would be admonished and not punished. *Dignitas delinquentis auget peccatum*. For the other three defendants, who never answered, and [there is] no charge against them, the Court would consider what should be done, for notwithstanding the course of the Court has been that if there are several defendants, and [the charge] is proved against one, the others shall not have costs, yet the opinion of the Court was that these three should have costs, otherwise this would remain as a libel against them. And it does not suffice for the plaintiff to rove for defendants, but to be well advised and instructed who are offenders, and who not, at his peril; otherwise it would be mischievous, and such defendants would not be [capable of being] witnesses.

Malice, the
accuser;
Justice, the
punisher

In Camera Stellata, coram Consilio ibidem, Mercurij, 16 Octobr., 1605.¹

1605
Oct. 16
[p. 210]

Dagge, plaintiff, Dunkellin and others, defendants, for forging a warrant of the Sheriff and inserting special bailiffs' names after the warrant was sealed and delivered with blanks, and also for riot in rescuing process. For the first offence [he] was fined £20, and it was ruled that such an offence had been sentenced in this Court several times. The Lord Chancellor vouched Bostocke and Lecheford's case.² Bostocke was removed from the Commission [of the Peace] for granting a warrant with blanks and lending his name: for it is a great offence in any, but especially in the Sheriff, if he had been made a party, because it is commonly used that the Sheriff is sworn to serve and execute process by indifferent men. But as to the riot, it was clear, and it seemed that there was a riot on the other side if it had been complained of.

Dagge
v.
DUNKELLIN
and others
—
Forgery

Sentence

Another cause of hearing between ,³ plaintiff,

¹ Twelve Councillors and Judges were present.

² See *ante*, p. 108.

³ Blank in MS.